

Tenant for life a lunatic. — Where a tenant for life is a lunatic, and his committee applies, under sect. 62 of the Act, for an order enabling him to exercise the powers of the Act, and no trustees are in existence, new trustees must be appointed for the purposes of the Act, and be served with notice of the application (e).

4. By sect. 39, sub-sect. (1), capital money arising under the Act is not to be paid to fewer than two persons as trustees of a settlement, unless the settlement authorises the receipt of capital trust money of the settlement by one trustee. But subject thereto, by sub-sect. (2), the provisions of the Act referring to the trustees of a settlement apply to the surviving or continuing trustees or trustee of the settlement for the time being.

Where personal estate is settled so that the trustees have authority to vary the investments, and after-acquired property is settled, by reference, upon the same trusts, the trustees, having an implied power of sale, fall within the definition of trustees of the settlement for the purposes of the Act (f), and if in such a case power is given by the settlement to the trustees *or trustee* to act and give receipts for moneys subject to the trusts of the settlement, * the case falls within the exception of sect. 39, [*553] sub-sect. (1), and a single trustee may receive the purchase-money of the real estate arising from a sale by the tenant for life (a).

5. **Tenant for life.** — We will next advert to the position of the tenant for life, and the powers given by the Act to the tenant for life, under which term we shall include not only the person or persons beneficially entitled to the possession of the settled land, or the receipt of the income thereof for his life (b), but also the limited owners, who, under sect. 58, have the powers of a tenant for life under the Act.

Defined. — We may here remark that by sect. 2, the tenant for life is defined to be “the person for the time being

(e) *Re Taylor*, 52 L. J. N. S. Ch. 728; 31 W. R. 596; 49 L. T. N. S. 420.

(f) *Re Garnett Orme and Hargreaves' Contract*, 25 Ch. D. 695.

(a) *Re Garnett Orme and Hargreaves' Contract*, 25 Ch. D. 695.

(b) See sect. 2, sub-ss. (5) and (10) (i).